



File No.: EXP202310996

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On June 28, 2023, a complaint was filed with entry registration number (...) before the Spanish Agency for Data Protection against A.A.A. with ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that he is a neighbor of the complained party and that there is land between the residences of both parties which the complainant claims is his property, being an access area to his home, and that the complained party intends to appropriate it, having installed surveillance cameras on the facade of his house that are directed at said space and at the entrance to his home, as well as the public road, having provided images and recordings from said system in a judicial proceeding in which both are parties. He also points out that the cameras are poorly marked as they have a sign indicating a monitored area that does not include information on where to direct requests to exercise rights.

Along with the complaint, he provides images of the areas affected by the cameras, recordings from the aforementioned system, and images of the monitored area sign referred to in his complaint.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on August 22, 2023, as recorded in the acknowledgment of receipt in the file.

On September 26, 2023, a response was received by this Agency indicating, among other things, the following:

"That the person who was responsible for the surveillance system and who installed it in the house located at ***ADDRESS.1 was my grandfather, B.B.B., who passed away a few months ago. Since then, the person responsible is my mother, the owner of said house, whose details are as follows:

C.C.C., ***NIF.2.

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...The three installed cameras only focus on the family property except for camera No. 2, which slightly focuses on the public road given that the objective of said camera is to focus on the land -antuzano- adjacent to our house and that our family uses as parking; which is why the camera also captures the access area to it, which is exclusively owned by house No. 2, owned by my family. This is so as the current land registry entry for the property located at ***ADDRESS.1 states the following:

"Urban. House at ***ADDRESS.1 intended for stable and garage, with two upper floors, occupies a surface area of twenty centiáreas, plus its antuzano."

The above comes from the updated description corrected and recorded through the deed of declaration of inheritance allocation and succession agreements, formalized on January 20, 2022, before the notary of Bilbao D.D.D., describing the property as follows:

"2.- (...): ACCESSORY HOUSE intended for stable or garage, located at ***ADDRESS.1, which appears as case number two of ***ADDRESS.1, measures twelve meters and fifty centimeters in front by ten meters and fifty centimeters in depth, that is, one hundred and twenty-five square meters, plus

its antuzano of about one hundred and twenty-five square meters."

Also, according to the updated simple note dated May 6, 2022, it is clearly stated that the antuzano falls within the limits belonging to the property located at ***ADDRESS.1. That is to say, the cameras focus solely and exclusively on my family's property, that is, private property.

Likewise, it states that these cameras have been installed for security reasons, as the neighbor of the adjoining property has accessed the antuzano in front of the house on several occasions, causing damage as evidenced by ***SENTENCE.1, (...).

He provides the aforementioned deed, the simple note, and photographic documentation of the situation of the 3 cameras with identification of each of them and photographic documentation of the viewing angle of said camera from the viewing device, as well as photographic documentation of the updated warning signs.

He also indicates that the recordings are automatically deleted after 20 days.

THIRD: On September 28, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing, which was duly notified to the representative of the complained party on September 29, 2023, as recorded in the acknowledgment of receipt in the file.

On January 30, 2024, the complainant submitted a document stating that he has not been notified of the admission for processing nor any other action by this Agency. He asserts that the non-compliance continues, feeling that his rights are being violated without the existing right to complain before this Agency being addressed either.

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On 20/02/2024, the claimant submitted a written extension informing this Agency of other addresses of the respondent for notification purposes.

On 09/04/2024, the claimant urged that the complaint be addressed by this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, in accordance with Article 4.1 of the GDPR, there is evidence of the processing of personal data, as the respondent carries out, among other processes, the collection, use, and destruction of the following personal data of individuals, such as: images.

The respondent carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

III

The image is personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines the concept of "processing" of personal data. Images generated by a system of cameras or video cameras are personal data, and therefore their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system complies with the provisions of the GDPR.

III

Principles of data minimization

Letter c) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed.

The application of the principle of data minimization in the context of video surveillance implies that images of public spaces cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

In some cases, to protect private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public space to ensure security purposes.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public space unless it is essential for that purpose or it is impossible to avoid it due to their location. And, in such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, they may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space. The installed cameras cannot capture images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor can they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. In this case, the camera captures the antuzano, which is registered as the property of the respondent in the property registry.

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For all the reasons stated above, it has not been duly proven in the file that the respondent party does not comply with the provisions of Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed," since there has been no evidence of excess in the capture of public space, and therefore the existence of the infringement.

The above must be connected with the validity in our Administrative Law of the principle of the presumption of innocence recognized in Article 24.2 of the Spanish Constitution, such that the exercise of the State's sanctioning power, in its various manifestations, is conditioned by the rules of evidence and a contradictory procedure in which the parties can defend their positions.

The principle of the presumption of innocence prevents attributing an administrative infringement when no evidence has been obtained and verified that substantiates the facts that motivate the accusation or the involvement of the alleged infringer in them.

The Constitutional Court (SSTC 131/2003 and 242/2005, among others) has ruled in this regard, indicating that one of the requirements inherent to the right to the presumption of innocence is that the sanction must be based on acts or incriminating evidence of the conduct attributed, and that the

burden of proof regarding the commission of the administrative offense and the participation of the accused falls on the acting public administration.

Likewise, it must be taken into account what is established in Article 53.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, which states:

“Besides the rights provided for in the previous section, in the case of administrative procedures of a sanctioning nature, the presumed responsible parties shall have the following rights: (...)

b) To the presumption of non-existence of administrative responsibility until proven otherwise.”

IV

Conclusion

Therefore, based on the points mentioned in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to substantiate the infringement as indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A. and to the complainant.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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